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Case Number: 25PSCV03668 Hearing Date: September 10, 2026 Dept: 6

CASE

NAME: Howard

A. Thomas v. Naglaa Mansour, et al.

Defendant

American Family Connect Property and Casualty Insurance Company's Motion to Quash Attempted Service on Defendant American Family Connect Property and Casualty Insurance Company, Erroneously Sued as American Family Connect Property/Casualty Insurance Co.

TENTATIVE

RULING

The Court GRANTS Defendant American Family Connect Property and Casualty Insurance Company's Motion to Quash Attempted Service on Defendant American Family Connect Property and Casualty Insurance Company, Erroneously Sued as American Family Connect Property/Casualty Insurance Co. The Court hereby quashes the summons and complaint served on Defendant Insurer without prejudice to Plaintiff attempting service again per the code.

Defendant American Family Connect

Property and Casualty Insurance Company is ordered to give notice of the Court's ruling within five calendar days of this order.

BACKGROUND

This is an auto accident case. On October 10, 2025, plaintiff Howard

A. Thomas (Plaintiff) filed this action against defendants Naglaa Mansour and

American Family Connect Property and Casualty Insurance Company (erroneously sued as American Family Connect Property/Casualty Insurance Co) (Insurer), alleging one cause of action for motor vehicle.

On August 14, 2026, Insurer specially appearing moved to quash attempted service of the summons and complaint on it. On September 3, 2026, Leticia Colchado (Colchado), Plaintiff's successor in interest, opposed the motion. Moving party did not reply.

LEGAL STANDARD

A defendant may move to quash service on the ground that the court lacks jurisdiction by filing a noticed motion to quash the service of summons at any time before the expiration of its time to plead. (Code Civ. Proc., § 418.10, subd. (a)(1).) When a defendant argues that service of summons did not bring him or her within the trial court's jurisdiction, the plaintiff has the burden of proving the facts that did give the court jurisdiction, that is, the facts requisite to an effective service. (Code Civ. Proc., § 418.10; *Vons Companies, Inc. v. Seabest Foods, Inc.* (1996) 14 Cal.4th 434, 449 [upon a defendant's motion to quash, "the plaintiff has the initial burden of demonstrating facts justifying the exercise of jurisdiction"].) Once the plaintiff establishes facts showing minimum contacts with the forum state, "it becomes the defendant's burden to demonstrate that the exercise of jurisdiction would be unreasonable." (*Ibid.*)

PRELIMINARY ISSUES

Plaintiff's opposition is untimely. The deadline for the opposition was August 25, 2026, based on the September 10, 2026 hearing date. (Code Civ. Proc., § 1005, subd. (b).) Plaintiff filed the opposition on September 3, 2026. The Court exercises its discretion to still consider Plaintiff's opposition given the Court granting Colchado's ex parte application to be substituted as Plaintiff's successor-in-interest on August 27, 2026, but nevertheless admonishes Plaintiff to comply with the Code of Civil Procedure going forward. (See Cal. Rules of Court, rule 3.1300, subd. (d); *Juarez v. Wash Depot Holdings, Inc.* (2018) 24 Cal.App.5th 1197, 1202.)

REQUESTS FOR JUDICIAL NOTICE

The Court GRANTS

Insurer's requests for judicial notice. (Evid. Code, § 452, subd. (d).) However, the Court takes judicial notice only as to "the existence, content and authenticity of public records and other specified documents" and the legal effect of the documents' language when that effect is clear, it does not take judicial notice of the truth of the factual matters asserted in those documents. (*Dominguez v. Bonta* (2022) 87 Cal.App.5th 389, 400; *Fontenot v. Wells Fargo Bank, N.A.* (2011) 198 Cal.App.4th 256, 265.)

DISCUSSION

Summary of Arguments

Insurer

seeks to quash service of the summons and complaint. Insurer contends service was defective for failure to strictly comply with Code of Civil Procedure section 415.40, which requires, among other things, a return receipt, and for failure to comply with Code of Civil Procedure section 416.10 for failure to address a specific corporate officer. Insurer contends Plaintiff's envelope was addressed to Insurer generally, not to an individual listed under section 416.10, and therefore fails per *Dill v. Berquist Constr. Co.* (1994) 24 Cal.App.4th 1426, 1434 (*Dill*).

In

opposition, Plaintiff contends to have received a signed returned receipt from Insurer. Plaintiff also contends Insurer's own evidence establishes actual internal receipt and processing of the litigation papers. Plaintiff acknowledges Insurer's reliance on *Dill* and asks the Court to consider the signed receipt, or alternatively to permit Plaintiff to attempt service again to cure service defects.

Analysis

The Court finds Insurer's motion persuasive.

While Plaintiff has provided a copy of a signed receipt demonstrating

compliance with Code of Civil Procedure section 415.40, Plaintiff has failed to demonstrate compliance with section 416.10, which requires that the summons and complaint be addressed to and actually delivered to one of the persons authorized under Code of Civil Procedure section 416.10. The envelope containing the summons and complaint was addressed to the company generally and not to any of the statutorily authorized persons. Plaintiff also failed to demonstrate that any of the statutorily authorized persons actually received the summons and complaint for purposes of substantial compliance. Actual internal receipt is not enough without proof that the summons and complaint were actually delivered to the appropriate authorized person. (Newsom Decl., Ex. 1; Colchado Decl., Ex. A; Code Civ. Proc., §§ 415.40, 416.10; Dill, supra, 24 Cal.App.4th at pp. 1434, 1437-1438.) The March 1, 2024 letter only confirms the correct address, not actual delivery to one of the authorized persons under section 416.10. (See Colchado Decl., Ex. B.)

Based on the foregoing, the Court GRANTS the motion and hereby quashes the summons and complaint served on Defendant Insurer. Plaintiff remains free to attempt service again per the code.

CONCLUSION

The Court GRANTS Defendant American Family Connect Property and Casualty Insurance Company's Motion to Quash Attempted Service on Defendant American Family Connect Property and Casualty Insurance Company, Erroneously Sued as American Family Connect Property/Casualty Insurance Co. The Court hereby quashes the summons and complaint served on Defendant Insurer without prejudice to Plaintiff attempting service again per the code.

Defendant American Family Connect Property and Casualty Insurance Company is ordered to give notice of the Court's ruling within five calendar days of this order.